

Website Development Agreement

Professional Services Agreement between Williams Digital and Donald Mark

Effective Date: Upon Acceptance · **Version:** 1.0 · **Jurisdiction:** State of Alabama

Parties

This Website Development Agreement (the "**Agreement**") is entered into by and between:

Service Provider

Williams Digital, a digital services and web development firm specializing in website design, development, hosting setup, and related digital solutions.

Contact: Dylan@williamsdigital.io

Client

Donald Mark (the "**Client**"), the owner and authorized representative of the restaurant business for which the website described in this Agreement is being built.

Prior to commencement of work, the Client shall provide in writing: the **legal business name** of the restaurant, the **physical business address**, a **direct phone number**, and the **domain name** to be used for the website. This Agreement is not effective until this information has been received and confirmed by the Service Provider.

Scope of Services

The Service Provider agrees to design, develop, and deploy a custom restaurant website for the Client. The project includes the following deliverables:

- **Ten (10) Pages** — Home, About Us, Menu, Banquet Facility, Gallery, Catering, Contact Us, Visiting Hours, Online Booking, and Menu Kit.

- ◆ **Responsive Design** — All pages built to display properly on desktop, tablet, and mobile devices, with particular emphasis on the mobile dining-decision experience.
- ◆ **Content Management** — An easy-to-use backend allowing the Client to update menus, photos, hours, and other content without developer assistance, plus a training walkthrough at launch.
- ◆ **Inquiry Forms** — Contact, catering, and banquet inquiry forms with email delivery to the Client.
- ◆ **Online Booking** — Integration of an online reservation/booking system.
- ◆ **Image Gallery** — A photo gallery showcasing the restaurant, food, and banquet facility.
- ◆ **Google Maps & Social Integration** — Location map embed and links to the Client's social media profiles.
- ◆ **SEO Foundations** — Page titles, meta descriptions, and basic on-page search-engine optimization.
- ◆ **SSL & Security** — HTTPS/SSL configuration and standard security hardening.
- ◆ **Domain Connection & Launch** — Connection of the Client's domain and deployment of the live website.
- ◆ **First-Year Hosting** — Twelve (12) months of website hosting included in the build fee, beginning at launch.

Client Content & Materials

All written content, menu information, logos, artwork, photography, and the domain name are to be supplied by the Client (or the Client's designated representative) at **no cost to the Service Provider**. The Service Provider shall not be required to pay, reimburse, or compensate any person or entity — including any employee, project manager, content provider, or contractor of the Client — in order to receive these materials. Any fee owed to any such person is the **sole responsibility of the Client** and is entirely outside this Agreement.

All required content and materials must be delivered within seven (7) days of the deposit being received. The project timeline does not begin until all materials have been received.

Revision Policy

The project includes up to **three (3) rounds of revisions** during the design and development phase. A revision round consists of a consolidated set of feedback submitted at one time. Additional revision rounds beyond the included three will be billed at the Service Provider's hourly rate of **\$50/hour**. Revisions must be requested within seven (7) days of receiving a design proof or deliverable; otherwise, the deliverable will be considered approved.

Change Orders & Scope Changes

Any work requested by the Client that falls outside the scope described above — including additional pages, custom integrations, online ordering, or new features — will require a written **Change Order**. The Service Provider will provide a quote for the additional work, and no work will commence until the Client approves the Change Order in writing. Change Orders may affect the project timeline and will be billed separately from the build fee.

Fees and Payment

In consideration of the services provided, the Client agrees to compensate the Service Provider as follows:

ITEM	AMOUNT
Deposit — 50%, due upon acceptance of this Agreement. Work begins after the deposit has been received and has fully settled.	\$750.00
Final Payment — 50%, due upon Client approval of the completed website, prior to launch.	\$750.00
Total Build Fee	\$1,500.00 USD

Build Fee — \$1,500.00 USD

A one-time build fee of **\$1,500.00 USD** covers the complete website design, development, all ten pages, forms, booking integration, SEO foundations, SSL, domain connection, launch, and the **first twelve (12) months of hosting**, as described in Section 2. This fee is split into two equal installments of **\$750.00**: a **50% deposit due upon acceptance** of this Agreement, and the remaining **50% due upon approval of the completed website, prior to launch**.

Hosting After Year One — \$50.00 USD / month

Beginning twelve (12) months after launch, a recurring monthly fee of **\$50.00 USD** covers website hosting, SSL certification, form and booking functionality, security and software updates, uptime monitoring, and backups. The monthly fee continues until cancelled by either party with **thirty (30) days written notice**. The domain remains owned by and registered to the Client at all times.

Payment Methods & Settlement

All payments shall be made **exclusively through the secure electronic payment link (credit/debit card invoice) provided by the Service Provider**. The Service Provider does **not** accept payment by paper check, cashier's check, money order, wire transfer, mobile check deposit, gift card, or cryptocurrency, and no such instrument will be treated as payment under this Agreement.

Work commences only after the deposit has been received **and has fully settled** with the Service Provider's payment processor. A payment that is later reversed, disputed, or returned is deemed never to have been made.

No Third-Party Disbursements

The Service Provider will **never disburse, forward, transfer, or refund any funds to any person or account other than the Client's original payment method.** Under no circumstances will the Service Provider pay any portion of any amount received to the Client's employees, project managers, content providers, designers, or any other third party, regardless of instruction. Any request that the Service Provider make such a payment shall be void and of no effect under this Agreement.

Overpayment

If any payment received exceeds the amount invoiced, the excess will be refunded **only to the original payment method**, only after the original payment has fully settled and cleared any applicable dispute window, and less any non-recoverable processing fees. Overpayments will not be applied to third parties, alternative accounts, or alternative payment channels under any circumstances.

Chargebacks & Payment Reversals

Any chargeback, payment dispute, or reversal initiated on a settled payment constitutes a **material breach** of this Agreement. Upon such an event, all work ceases immediately, all licenses and rights granted to the Client under this Agreement are revoked, any website or preview materials may be taken offline, and the full unpaid balance for work performed becomes immediately due, together with any processing or dispute fees incurred by the Service Provider.

Cancellation & Refund Policy

Should the project be cancelled by the Client after work has commenced, the **\$750.00 deposit is non-refundable**, as it covers discovery, planning, design, and development work already performed. If the project is cancelled prior to launch, no final build payment shall be owed. If the Service Provider cancels before any work has been performed, the full deposit will be refunded to the original payment method.

Client Representative & Communications

The Client may designate in writing one (1) representative (for example, a project manager or coordinator) authorized to deliver content and materials, review design proofs, and provide day-to-day feedback on the Client's behalf.

Limits of Representative Authority

The designated representative's authority is limited to content delivery and design feedback.

The representative has **no authority** to modify this Agreement, alter payment amounts, terms, or methods, direct any disbursement of funds, approve Change Orders, or bind either party in any way. All payment, contractual, and approval matters shall be handled **directly and exclusively between the Client (the signatory below) and the Service Provider**.

The Service Provider is under no obligation to pay, contract with, or assume responsibility for any representative, employee, or contractor of the Client. Any compensation owed to such persons is solely the Client's obligation.

Ownership & Intellectual Property

Ownership of Website Deliverables

Upon receipt of full payment of the build fee in settled funds, the Client shall own all **custom-designed website deliverables**, including the website design, page layouts, templates, and content created specifically for the Client under this Agreement. Until full payment has settled, all deliverables remain the exclusive property of the Service Provider. The Service Provider retains the right to use general techniques, tools, frameworks, and methodologies developed or utilized during the engagement. Third-party assets (fonts, plugins, open-source software, stock imagery) remain subject to their respective license agreements.

Client Materials

All logos, artwork, photography, menus, and written content supplied by the Client remain the property of the Client. The Client warrants that all such materials are owned by the Client or properly licensed, and agrees to indemnify the Service Provider against any third-party claim arising from their use.

Domain & Hosting

The domain name shall remain **owned by and registered to the Client** at all times. Hosting managed by the Service Provider remains under the Service Provider's administrative control for the duration of the hosting engagement. Upon termination and settlement of all outstanding balances, the Service Provider will provide the Client with a complete copy of the website files and assist with transferring hosting to a provider of the Client's choosing within a reasonable period.

Portfolio & Credit Rights

The Service Provider retains the right to display the completed website in its professional portfolio, marketing materials, case studies, and social media. A small, unobtrusive credit line (e.g., "Site by Williams Digital") may be placed in the website footer. If the Client wishes to opt out of the credit line, this must be agreed upon in writing prior to launch.

Project Timeline

The Service Provider will aim to complete the project within approximately **fourteen to twenty-one (14–21) days** from the later of: (a) settlement of the deposit, and (b) receipt of all final content, branding materials, images, menu information, and domain access:

- ◆ **Days 1–5** — Design direction, homepage concept, and structure of all ten pages.
- ◆ **Days 6–12** — Full build-out, content loading, forms, gallery, and booking integration.
- ◆ **Days 13–17** — Client review, revision rounds, SEO configuration, and mobile refinement.

- ◆ **Days 18–21** — Final approval, final payment, domain connection, launch, and backend training walkthrough.

This timeline is a good-faith estimate. Delays in providing content, feedback, approvals, or domain access may extend the schedule accordingly, and the Service Provider shall not be held liable for such delays. A private preview link will be provided throughout development for review.

Client Responsibilities & Support

To facilitate the effective delivery of services, the Client agrees to:

- ◆ Provide the business identification details described in Section 1 prior to commencement.
- ◆ Provide timely, accurate, and complete content, including menu information, logos, artwork, photography, and domain access.
- ◆ Confirm the accuracy of all menu items, prices, hours, and business details prior to launch.
- ◆ Respond to communications, design proofs, and requests for approval within a reasonable timeframe.
- ◆ Warrant that all materials provided are owned by the Client or properly licensed.

Post-Launch Support

The Service Provider will provide **thirty (30) days of complimentary post-launch support** beginning on the date the website goes live. This support covers bug fixes and configuration questions, in addition to the backend training walkthrough provided at launch.

Project Pause & Inactivity

If the Client (or the Client's representative) becomes unresponsive or fails to provide requested materials, feedback, or approvals for a period of **fourteen (14) consecutive days**, the project may be placed on hold. Projects paused for more than **sixty (60) days** may be treated as cancelled under the Cancellation & Refund Policy outlined in Section 3.

Launch Sign-Off

Prior to the public launch of the website, the Service Provider will present the completed site to the Client for **final review and approval**. The Client shall have five (5) business days to review and provide written approval or submit final revision requests. Upon approval, the final build payment of **\$750.00** becomes due, and the website will be launched once that payment has settled. If the Client does not respond within this period, the website will be deemed approved.

Term and Termination

This Agreement shall become effective upon acceptance by the Client and receipt of the information required under Section 1, and shall remain in effect until cancelled as provided below.

Termination by Either Party

Either party may terminate this Agreement at any time by providing **thirty (30) days written notice** to the other party. Upon termination and settlement of all outstanding balances, the Service Provider will provide the Client with all completed and paid-for deliverables and assist with a reasonable transition of hosting.

Termination for Cause

Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision and fails to cure such breach within five (5) days of receiving written notice. A chargeback or payment reversal under Section 3 is a material breach not subject to cure.

Effect of Termination

Upon termination, the Client shall pay the Service Provider for all services rendered up to the effective date of termination. Deliverables transfer only upon settlement of all amounts owed.

Limitation of Liability

The Service Provider provides professional digital services with reasonable care and industry-standard practices. To the maximum extent permitted by applicable law:

- ♦ The Service Provider shall not be liable for any indirect, incidental, special, consequential, or punitive damages arising out of or related to this Agreement.
- ♦ The Service Provider's total aggregate liability under this Agreement shall not exceed the total fees paid by the Client under this Agreement.
- ♦ The Service Provider is not responsible for third-party service disruptions, including hosting outages, domain registrar issues, booking-platform outages, or email deliverability issues outside its control.
- ♦ The Service Provider makes no guarantees regarding specific business outcomes, sales, reservations, search engine rankings, or website traffic resulting from the services provided.

Warranty Disclaimer

All services and deliverables are provided "as-is" and "as-available." The Service Provider makes no warranties, express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or uninterrupted, error-free operation of any website or digital product.

Client Content Indemnification

The Client agrees to indemnify, defend, and hold harmless the Service Provider from any claims, damages, losses, liabilities, or expenses arising from content, images, logos, menus, or materials provided by the Client or the Client's representative, including any claim that such materials infringe the rights of a third party.

Dispute Resolution & Governing Law

In the event of any dispute, the parties agree to first attempt to resolve the matter through **good faith negotiation**. If the dispute cannot be resolved within thirty (30) days, the parties agree to

submit the dispute to **binding arbitration** in accordance with the rules of the American Arbitration Association, conducted in the State of Alabama.

This Agreement shall be governed by and construed in accordance with the **laws of the State of Alabama**, without regard to its conflict of laws principles. Any legal proceedings related to this Agreement shall be conducted within the appropriate jurisdictions of the State of Alabama.

General Provisions

- ♦ **Entire Agreement** — This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, and representations, including any statements made by email prior to execution.
 - ♦ **Amendments** — This Agreement may only be amended or modified in writing, signed by both parties. No representative of either party may amend it.
 - ♦ **Independent Contractor** — The Service Provider is an independent contractor and not an employee, partner, agent, or representative of the Client.
 - ♦ **Severability** — If any provision is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
 - ♦ **Waiver** — The failure of either party to enforce any right or provision shall not constitute a waiver of such right.
 - ♦ **Assignment** — Neither party may assign this Agreement without the prior written consent of the other party.
 - ♦ **Force Majeure** — Neither party shall be liable for delays or failures in performance resulting from causes beyond their reasonable control.
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Acknowledgment & Signatures

By signing below, each party acknowledges that they have read, understood, and agree to be bound by the terms and conditions set forth in this Website Development Agreement.

Service Provider — Williams Digital

Signature

Printed Name

Date

Client — Donald Mark

Signature

Printed Name & Business Name

Date